



Our ref: IM-72900

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Dear Interested Party,

Request for submissions: Icon Group's proposed acquisition of a leasehold interest at Burnside War Memorial Hospital

The Australian Competition and Consumer Commission (**ACCC**) is seeking your views on the proposed acquisition of a leasehold interest at Burnside War Memorial Hospital Toorak Gardens (**Burnside Hospital**) by the Icon Group (**Icon**) (the **Proposed Acquisition**).

The Burnside Hospital is a private, not-for-profit community hospital in Adelaide, South Australia.

Icon is a large provider of cancer care services. It operates radiation oncology clinics in all states of Australia and the ACT.

The Proposed Acquisition would enable Icon to establish a radiation oncology facility at Burnside Hospital, within a new building which Burnside Hospital intends to develop across the road from its existing location.

Further details about the parties and the Proposed Acquisition can be found in **Attachment A**.

The ACCC's investigation is focused on the impact of the Proposed Acquisition on competition. In particular, we are seeking your views on:

- the demand for, and current supply of, radiation oncology services in the greater Adelaide region and/or South Australia
- the likely impact of the Proposed Acquisition on prices and/or services in the supply of radiation oncology services in the greater Adelaide region and/or South Australia
- the extent to which the Proposed Acquisition is likely to raise barriers to entry and expansion for alternative private providers of radiation oncology services.

Further issues you may wish to address are set out in **Attachment B**.

This matter is public, and you can forward this letter to anybody who may be interested.

The legal test which the ACCC applies in considering the Proposed Acquisition is in section 50 of the *Competition and Consumer Act 2010* (the **Act**). Section 50 prohibits acquisitions that are likely to have the effect of substantially lessening competition in a market.

Please provide your response by **10 June 2025** via email to mergers@accc.gov.au with the title: *Submission re: Icon / lease at Burnside Hospital*. If you require more time to respond, please let us know.

If you would like to arrange a time to discuss the matter with ACCC officers, or have any questions about this letter, please contact mergers@accc.gov.au.

Updates regarding the ACCC's investigation will be available on the ACCC's Public Mergers Register at ([ACCC mergers register](#)).

Confidentiality of submissions

The ACCC treats sensitive information it receives during a merger review as confidential, and will not publish your submission. We will not disclose submissions to third parties (except our advisors/consultants) unless compelled by law (for example, under freedom of information legislation or during court proceedings) or in accordance with s155AAA of the *Competition and Consumer Act 2010*. Where the ACCC is required to disclose confidential information, we will notify you in advance where possible so that you have an opportunity to be heard. Therefore, please clearly indicate if any information you provide is confidential. Our [Informal Merger Review Process Guidelines](#) contain more information on confidentiality.

Yours sincerely

A handwritten signature in blue ink, appearing to read 'Morag Bond', is positioned above the typed name.

Morag Bond
General Manager
Merger Investigations

Attachment A

The Acquirer – Icon

Icon is a large provider of cancer care services which operates in Australia, New Zealand, Singapore, Malaysia, China and the United Kingdom. Icon operates radiation oncology clinics in all Australian states and the ACT. It also provides medical oncology services, pharmaceutical compounding services, pharmacy management services and clinical cancer trials at various locations across Australia.

Icon currently operates 2 private radiation oncology centres in South Australia (Windsor Gardens and Noarlunga) and has a third site under development in North Adelaide, all of which are located within 50km of the target location. Icon has 3 single standard linear accelerators (**linac**) across its 2 radiation oncology centres in Adelaide (and a fourth linac at its North Adelaide facility which is not yet operational).¹

The Proposed Acquisition – leasehold interest at Burnside Hospital

Burnside Hospital is a private, not-for-profit community hospital. Burnside Hospital's cancer services currently include day chemotherapy facilities and surgery, but not radiation oncology services.

Burnside Hospital is currently planning an expansion of its Toorak Gardens location, with the development of a 3-storey building directly across the road from the existing hospital.

The Proposed Acquisition is for a long-term lease on the first floor of the new building. The purpose of the Proposed Acquisition is to enable Icon to establish a new radiation oncology facility, which will include a single linac.

¹ A linac is a machine used in radiation oncology therapy to deliver high-energy x-ray (electron) beams to a patient's cancer. Cancer Council Australia, [Understanding Radiation Therapy](#), March 2024, pp 23, 25, 66.

Attachment B

1. Describe your business or organisation and explain your interest in the Proposed Acquisition, including any commercial relationship with Icon.

Competition in radiation oncology services

2. What providers of radiation oncology services (including both public and private providers) compete with Icon in the greater Adelaide region and South Australia more broadly?
3. How far do patients typically travel to access radiation oncology services in South Australia? How much does this vary based on whether they live in the greater Adelaide region or another part of the state?
4. Describe the non-price factors by which providers of radiation oncology services compete for the supply of radiation oncology services.
5. Describe whether and to what extent competing providers of radiation oncology services would constrain Icon from increasing prices and/or decreasing service levels in the greater Adelaide region and/or South Australia, including the impact of factors such as:
 - location of existing public and private radiation oncology services
 - presence of nearby surgical and medical oncology services, and
 - availability of radiation oncologists.

The questions below are divided into questions for referring doctors and radiation oncologists, competitors, and private hospitals, but you are welcome to comment on any question/s in any category.

Questions for referring doctors and radiation oncologists

6. What are the key factors you consider when referring a patient to a particular radiation oncology provider? For example, patient need, treatment type, reputation and expertise, cost, equipment, waiting times and location.
7. To what extent do public and private radiation oncology providers compete with each other in South Australia, including with regard to the factors identified in question 6 above?
8. Do radiation oncology doctors and specialists in South Australia work across multiple sites or clinics? If so, how far do they typically travel between these locations?

Questions for competitors

9. What factors inform price setting for radiation oncology services? Do radiation oncologists have any input into these pricing decisions?
10. Describe the impact of government regulation or legislation (including, for example, Medicare subsidies and quality standards) on competitive dynamics in the supply of radiation oncology services in South Australia.

Questions for private hospital operators

11. What factors influence the decision to establish a radiation oncology clinic in your hospital?
12. How do you decide on a provider for radiation oncology services, and what factors do you consider in awarding contracts?
13. Please describe any data you collect relating to radiation oncology services, including demand for radiation oncology services and waiting times.

Other information and competition issues

14. Describe any trends or changes you see impacting the competitive landscape of the radiation oncology services industry, including issues such as bulk-billing rates, price changes, and any recent technology developments.
15. Provide any other information or comments you consider relevant to the ACCC's consideration of the proposed acquisition under section 50 of the Act.